

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:

-----X
ERIC HOLLOWAY,

Plaintiff),

SUMMONSPlaintiffs designate
NEW YORK County as
the place of trial.

-against-

THE CITY OF NEW YORK, LT. LAWRENCE DONNELLY
(Tax Reg. 923777), P.O. JOHN ROSSI (Tax
Reg. 964744), P.O. JOHN FRANZITTA (Tax Reg.
961769) P.O. KEERANDAI BHAWANIDEERI (Tax
Reg. 954549), P.O. KAERON DAVID (Tax Reg.
917069), P.O. RAMESH MARGON (Tax Reg.
963134), P.O. RICHARD FINKELSTEIN (Tax Reg
948208), and P.O. CHRISTOPHER BROWN (Tax
Reg. 963884).

The basis of venue
is: where the Tort
aroseThe Tort arose in:
NEW YORK COUNTY,
State of New YorkDefendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action,
and to serve a copy of your answer, or, if the complaint is not
served with this summons, to serve a notice of appearance on the
Plaintiffs' attorneys within twenty days after the service of this
summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or, within 30 days
after completion of service where service is made in any other
manner. In case of your failure to appear or answer, judgment will
be taken against you by default for the relief demanded in the
complaint.

DATED: JAMAICA, NEW YORK
AUGUST 25, 2021
KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorneys for Plaintiff
ERIC HOLLOWAY
89-31 161st Street, Suite 705
Jamaica, New York 11432
(718) 219-8744

TO: **Corporation Counsel of
The City of New York**
100 Church Street
New York, NY 10007

Lt. Lawrence Donnelly
One Police Plaza
New York, NY 10038

P.O. John Rossi
One Police Plaza
New York, NY 10038

P.O. John Franzitta
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New York, NY 10038

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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
ERIC HOLLOWAY,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, LT. LAWRENCE DONNELLY
(Tax Reg. 923777), P.O. JOHN ROSSI (Tax
Reg. 964744), P.O. JOHN FRANZITTA (Tax Reg.
961769) P.O. KEERANDAI BHAWANIDEERI (Tax
Reg. 954549), P.O. KAERON DAVID (Tax Reg.
917069), P.O. RAMESH MARGON (Tax Reg.
963134), P.O. RICHARD FINKELSTEIN (Tax Reg
948208), and P.O. CHRISTOPHER BROWN (Tax
Reg. 963884),

Defendants.

-----X

Plaintiff, **ERIC HOLLOWAY** by his attorney THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants, respectfully
alleges upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **ERIC HOLLOWAY**
was and still is a resident of the County of Queens, City and State
of New York.

2. At all times herein mentioned, Defendant, **THE CITY OF NEW
YORK** was, and still is a municipal corporation duly organized
existing by virtue of the laws of the State of New York.

3. Defendant **THE CITY OF NEW YORK** maintains the New York
City Police Department, a duly authorized department of **THE CITY OF**

NEW YORK authorized to perform all of the functions of a police department as per the applicable sections of the rules and the regulations of **THE CITY OF NEW YORK**.

4. At all times hereinafter mentioned, **LT. LAWRENCE DONNELLY** (Tax Reg. 923777), **P.O. JOHN ROSSI** (Tax Reg. 964744), **P.O. JOHN FRANZITTA** (Tax Reg. 961769) **P.O. KEERANDAI BHAWANIDEERI** (Tax Reg. 954549), **P.O. KAERON DAVID** (Tax Reg. 917069), **P.O. RAMESH MARGON** (Tax Reg. 963134), **P.O. RICHARD FINKELSTEIN** (Tax Reg. 948208), and **P.O. CHRISTOPHER BROWN** (Tax Reg. 963884) were, and in most cases, still are, duly sworn police officers, detectives, senior officers and or Commissioners of the NYPD and were acting under the supervision of said department and according to their duties.

5. At all times hereinafter mentioned the individually named Defendants were acting as agents, servants and/or employees of the Defendant **THE CITY OF NEW YORK**.

6. On or about August 31, 2020, the Plaintiff timely served a Notice of Claim, in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

7. At least thirty (30) days have elapsed since the service

of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

8. Plaintiff has made himself available for a hearing pursuant to General Municipal Law §50h however that hearing, which has been scheduled on two occasions, was rescheduled on both occasions at the request of the firm representing Defendants. The firm is currently seeking to hold the hearing on September 9, 2021, a date after the applicable statute of limitations. Therefore, the statutory hearing has been effectively waived.

JURISDICTION

9. Jurisdiction here is proper in that this cause of action is being brought in the county where the cause of action accrued.

10. All of the foregoing acts occurred within NEW YORK County, City and State of New York.

FACTS

11. On the evening of June 7, 2020, Plaintiff **ERIC HOLLOWAY** was driving operating his motor vehicle with 4 passengers in his car.

12. At approximately 3:00AM Plaintiff's vehicle was stopped by members of the NYPD at the intersection of 125th Street and 2nd Avenue.

13. During this stop Plaintiff **ERIC HOLLOWAY** offered his license, registration, and essential worker documents to the

officers.

14. The vehicle was stopped at that location for an extended period and several NYPD officers, including, but not limited to, the individually named NYPD defendants herein, began arriving at the location and interacting with Plaintiff and his passengers.

15. During the stop Plaintiff **ERIC HOLLOWAY** along with all 4 of his passengers held their hands up so that their hands were visible to the surrounding officers.

16. One or more of the individually named Defendants opened the rear passenger door and removed one of Plaintiff's passengers from the vehicle.

17. Plaintiff **ERIC HOLLOWAY** notified certain of the individually named Defendants that he would like to exit his vehicle to ensure the safety of his passenger who was being removed from the vehicle without explanation.

18. Plaintiff **ERIC HOLLOWAY** climbed up through the window and sat on the car door so that he could turn his body and look across the roof of his car to see his passenger who had been taken out of the vehicle.

19. In response, Defendants **NYPD OFFICERS** grabbed Plaintiff **ERIC HOLLOWAY** and violently dragged him out of the vehicle through the window.

20. Plaintiff **ERIC HOLLOWAY** was brought to the ground and assaulted by Defendant **NYPD OFFICERS**.

21. Thereafter, Plaintiff **ERIC HOLLOWAY** was arrested by the same NYPD officers.

22. Plaintiff **ERIC HOLLOWAY** was taken into custody and prosecuted for alleged violations of the New York State Penal Law.

23. Upon information and belief, said prosecution continued until the case was dismissed by agreement between the New York County District Attorney's Office and counsel for Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION

24. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "23" with the same force and effect as if restated herein.

25. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **ERIC HOLLOWAY**.

26. Defendants restrained Plaintiff **ERIC HOLLOWAY** and interfered with his liberties and took him into custody without the proper authority to the NYPD 25th Precinct and charged Plaintiff with various crimes under Criminal Docket CR-011250-20NY.

27. At no time did the Plaintiff consent to the unlawful conduct of the Defendants.

28. Defendants' conduct was not privileged or otherwise protected by the law.

29. As a result of Defendants' conduct, Plaintiff was damaged.

AS AND FOR A SECOND CAUSE OF ACTION

30. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "29" with the same force and effect as if restated herein.

31. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did commit an assault upon Plaintiff **ERIC HOLLOWAY** by approaching him with outstretched arms, weapons and handcuffs thereby intentionally creating a reasonable apprehension of an imminent harmful or offensive contact.

32. Plaintiff experienced a reasonable apprehension of a harmful or offensive contact as a result of Defendants' conduct.

33. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

34. Defendants' conduct was not privileged or otherwise protected by law.

35. As a result of Defendants' conduct Plaintiff was damaged.

AS AND FOR A THIRD CAUSE OF ACTION

36. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "35" with the same force and effect as if restated herein.

37. That on June 7, 2020, the defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, committed a harmful or offensive touching upon Plaintiff **ERIC HOLLOWAY** by physically assaulting him, pulling, dragging, punching, kicking, and/or ultimately arresting him.

38. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

39. Defendants' conduct was not privileged or otherwise protected by law.

40. As a result of Defendants conduct, Plaintiffs were damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

41. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "40" with the same force and effect as if restated herein.

42. In relevant part, 42 United States Code, Section 1985(3) provides that,

"If two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

43. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants conspired to directly violate Plaintiffs' Federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault, batter, and falsely arrest him without legal authority or consent.

44. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants furthered the conspiracy by assaulting, battering, and falsely arresting Plaintiff without legal authority or consent.

45. As a result of the Defendants' conduct, Plaintiff suffered deprivations of their rights guaranteed by the United States Constitution, the laws of the United States and the State of New York.

46. As a result of the Defendants' unlawful conduct, Plaintiff was damaged.

AS FOR THE FIFTH CAUSE OF ACTION

47. Plaintiffs repeat, reiterate, and reallege each of the previous allegations provided in Paragraphs "1" through "46" with the same force and effect as if restated herein.

48. 42 U.S.C. §1986 provides in relevant part:

"Every person, who having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented.."

49. That on June 7, 2020, none of the Defendants prevented or stopped one another from assaulting, battering, or falsely arresting Plaintiff without legal authority or consent.

50. As a result of the Defendants' failure to act Plaintiff was damaged.

AS FOR A SIXTH CAUSE OF ACTION

51. Plaintiff repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "50" with the same force and effect as if restated herein.

52. Plaintiff brings this cause of action pursuant to 42 USC §1983.

53. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants falsely arrested Plaintiff.

54. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants civilly assaulted Plaintiff.

55. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants committed a battery upon Plaintiff.

56. That on June 7, 2020, the Defendants jointly and severally in their capacity as police officers, detective and/or sergeants utilized more force than reasonably necessary in their interaction with Plaintiff. Their use of force was excessive.

57. The afore-described actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- i. Freedom from assault to his person;
- ii. Freedom from battery to his person;
- iii. Freedom from false arrest;

iv. Freedom from being subjected to the excessive use of force.

58. Plaintiff in no way consented to the conduct of Defendants.

59. The afore-described conduct of the Defendants was not privileged or otherwise protected by law.

60. As a result of Defendants' conduct, Plaintiff was damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

61. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "60" with the same force and effect as if restated herein.

62. Defendants, jointly and severally, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of **THE CITY OF NEW YORK** and/or the NYPD that is forbidden by the United States Constitution.

63. The aforementioned customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and/or the NYPD included, but were not limited to, arresting citizens without probable cause, manufacturing evidence and/or engaging in falsification in an effort to secure convictions and achieve ulterior motives like overtime compensation.

64. Additionally, **THE CITY OF NEW YORK** engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its police officers and detectives that was the driving force behind the violation of Plaintiffs' rights as

described herein.

65. By failing to properly recruit, screen, train, discipline and supervise its officers, including the individually named Defendants herein, **THE CITY OF NEW YORK** has tacitly authorized, ratified, sanctioned and/or impliedly authorized Defendants' acts complained of herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff **ERIC HOLLOWAY**.

67. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff **ERIC HOLLOWAY** as alleged herein.

68. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

69. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- i. Not to be deprived of liberty without due process of law;
- ii. To be free from false arrest;
- iii. To be free from unreasonable and unlawful searches;
- iv. To be free from unlawful warrantless detention and arrest.

70. As a result of the foregoing, Plaintiff **ERIC HOLLOWAY** is entitled to compensatory damages in an amount to be fixed by a jury.

AS FOR A NINTH CAUSE OF ACTION

71. Plaintiffs repeat, reiterate, and reallege each of the allegations in Paragraphs "1" through "70" with the same force and effect as if restated herein.

72. Defendant **THE CITY OF NEW YORK** is vicariously liable for the acts of its employees and agents who were on duty and acting within the scope of their employment when they engaged in the wrongful conduct described herein.

73. As a result of afore-described conduct of the Defendants, Plaintiff **ERIC HOLLOWAY** is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff **ERIC HOLLOWAY** demands judgment and pray for the following relief, jointly and severally, against the Defendants named herein:

1. Full and fair compensatory damages in an amount to be determined by a jury;
2. Punitive damages against the individual Defendants in an amount to be determined by a jury;
3. Reasonable attorney's fees and the costs and disbursements of this action; and
4. Such other and further relief as appears just and proper.

Dated: JAMAICA, NEW YORK
AUGUST 25, 2021



Kareem R. Vessup
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.

Attorney for Plaintiff(s)

ERIC HOLLOWAY

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